

Krpan, et al. v. Slight, et al.

20CV44854

**DEFENDANTS' MOTION TO COMPEL RESPONSES TO
DISCOVERY AND PRODUCTION OF DOCUMENTS AND ESI,
AND RELATED DOCUMENTS**

Defendant Terri Bowman moves, pursuant to the Civil Discovery Act, for an order compelling Plaintiff Christopher Krpan to provide responses and produce documents in response to discovery requests propounded on Plaintiff by Defendant and for an award of monetary sanctions on the grounds that Plaintiff failed to serve timely responses to the subject discovery.

Moving party has failed to comply with Local Rule 3.3.7, enacted January 1, 2018, in that the Notice of Motion does not include the mandatory language regarding the Court's tentative ruling system. Pursuant to said local rule, lack of compliance provides a specific ground to deny any such procedurally-deficient motion. Based solely upon moving party's failure to comply with Local Rule 3.3.7, the motion is DENIED without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal order is required.

LVNV Funding LLC v. Seagraves, et al.

21CF13407

PLAINTIFF’S MOTION FOR JUDGMENT ON THE PLEADINGS

Plaintiff LVNV Funding, LLC moves, pursuant to Code of Civil Procedure section 438 (c)(1)(a), for judgment on the pleadings on the grounds that Plaintiff’s complaint states facts sufficient to constitute a cause of action against Defendant, Defendant has been deemed to have admitted all material elements of Plaintiff’s causes of action, and there are no material facts that require evidentiary resolution.

A Plaintiff may only move for Judgment on the Pleadings pursuant to Code of Civil Procedure section 438, on grounds “that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Cal Code Civ. Proc., § 438, subd. (c)(1)(A).) “The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (*Id.* at subd. (d).)

Plaintiff, however, asks the Court to declare that its evidence establishes facts that entitle Plaintiff to a judgment because “there are no material facts that require evidentiary resolution.” (Notice of Motion at 1:25.) The Court concludes that this type of relief is not available on a motion for judgment on the pleadings.

A motion for summary judgment tests the existence and sufficiency of evidence to support the complaint’s allegations. (See *Columbia Casualty Co. v. Northwestern National Insurance Co.* (1991) 231 Cal.App.3d 457, 468 (*Columbia Casualty*).) “In a motion for summary judgment, judicial notice or an evidentiary admission or concession by the pleader/adversary can support the motion and thrust the burden on the [pleader/adversary] to come forward with facts in rebuttal.” (*Ibid.*) “In contrast a motion for judgment on the pleadings is the equivalent of a general demurrer. [Citation.] This motion tests whether the allegations of the pleading under attack support the pleader’s cause if they are true.” (*Ibid.*)

Plaintiff argues, through its Support Memorandum, that the Court is permitted to take judicial notice of the matters deemed admitted by Defendant, pursuant to the Court’s September 10, 2021 Order. The Court agrees. The relief Plaintiff seeks, however – judgment on Plaintiff’s causes of action based on those facts – requires a motion for summary judgment. The shortcoming in Plaintiff’s approach is revealed by the fact that Plaintiff has made no attempt to show that the “answer does not state facts sufficient to constitute a defense to the complaint.”